

VIVENCIAS: Reports from the field

SETTLING THE BOYCOTT: OHIO'S FARM LABOR ORGANIZING COMMITTEE BRINGS NORTH CAROLINA'S MT. OLIVE COMPANY TO THE TABLE

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FLOC: Hasta la Victoria

Seven years ago (1999), when Latino farm workers in North Carolina decided to boycott the Mt. Olive Pickle corporation, the Farm Labor Organizing Committee (FLOC) from Toledo, Ohio, was ready to lead the struggle. Baldemar Velasquez, FLOC's president since the late 1970s, knew very well what he was getting into; farm workers possess, according to Velasquez, two things corporations lack, namely, time and a seasoned grassroots network.

For FLOC, the boycott had two general dimensions. First, the point that the struggle was not aimed at Mt. Olive *per se*, but at the cucumber industry in North Carolina, which, however, Mt. Olive controls. Furthermore, that victory would be a matter of consistent, strategic organizing, and calibrated patience. Since the 1970s, FLOC has been driven by this conviction: its relentless struggles for dignity and justice for farm workers, as a matter of course, ultimately prevail, no matter how strong the opposition.

Vision and faith have been FLOC's labor trademarks since the 1980s, when Velasquez orchestrated (1986) an historic three-way agreement involving the farm workers, the growers, and the food processing industry. After an eight-year boycott against Campbell's Soup (1978–1986), FLOC managed to bring the corporation to the negotiating table under the premise that, among all three participants, Campbell's was the one with the most





power. FLOC's vision has thus been clear: corporations control all the parameters in the industry. They set the price of the crop, determine the number of acres to be planted, and give farmers the seeds to plant and the chemicals to use. They have to be a part of the collective bargaining process and they have to come up with the monetary resources needed to support the agreement reached among the three groups – farm workers, growers, and food processors.

The three-way agreement for which FLOC is emblematic works by having corporations “endorse” the agreement “signed” between farm workers and growers. Historically, FLOC contracts have benefited family farmers as much as the workers, since they have pushed corporations to increase crop prices.

If FLOC's vision rests on this three-way agreement, successfully operating in Ohio and Michigan since 1986, its faith is rooted in a social reading of the Bible, where God stands for the struggle against the exploitation of the poor. As some have put it, both for Cesar Chavez and Velasquez, union work is more a mission than a job. At FLOC's headquarters in Toledo, this biblical quote crowns the conference room: “Forsake not the assembling of ourselves together... but let us encourage one another and so much the more as you see the day approaching” Heb. 10:25.

North Carolina: No worker's land

FLOC's recent September (2004) victory in North Carolina is nothing less than groundbreaking. For one thing, North Carolina's history has not been union friendly at all; only 3% of the state's workers are unionized. Contemporary documented cases of slavery and servitude attest to this reality. Hence, FLOC's victory in North Carolina sets an important precedent – in providing the first union contract ever signed by farmers in the state, FLOC's victory is expected to influence, according to Velasquez, future negotiations in the agricultural business of the state.

Since 1997, two years before the launching of the boycott, FLOC began organizing in North Carolina's fields during the summer, when seasonal work peaks, in order to follow the situation closely, and to be in a position to propose sound alternatives to the complaints of farm workers. In the summer of 2003, FLOC's field-organizing efforts peaked; multiple grievances with farmers and crew leaders were resolved, unpaid wages were gained, educational workshops were conducted on labor rights, and English classes were offered.

With this victory in North Carolina, FLOC stressed one of the points it consistently made to anyone who failed to see the legal dimension of the boycott – the fact that union mediation accomplishes workable results that federal laws, for many reasons, are unable to enforce.

Farm workers' complaints

To better contextualize the plea of the farm workers FLOC represents, an overview of their situation is in order. First and foremost, farm workers are the poorest workers in the United States; they are excluded from major US labor laws, so their working conditions – housing, working hours, rests, access to water, bathrooms, proclivity to injuries, exposure to chemicals, and deaths – are, according to Velasquez, “tragic” and “shameful.” About 90% of North Carolina farm workers are either “guest workers” brought to North Carolina from Mexico under the Department of Labor authorized H2A visas, or undocumented immigrants. Their fear of deportation or of losing their visa privileges keeps them from formally complaining about their situation. North Carolina brings 8,000 H2A workers every year to harvest crops from cucumbers to tobacco to sweet potatoes in 1,000 farms.

Under these conditions, the exploitation of farm workers in North Carolina was inevitable. In general, it took two basic moves for the exploitative mechanism to operate. First, the right to determine the price of the crop belonged exclusively to the corporations, in this case Mt. Olive. Secondly, the NC Growers Association that recruited H2A farm workers intimidated the workers, bilked them of their wages, and blacklisted those who dared to raise their voice. FLOC convincingly argued that Mt. Olive cucumber growers mistreated their workers by paying the workers less than the minimum wage, providing them substandard housing, and blacklisting those who were outspoken.

Mt. Olive responds

Not surprisingly, Mt. Olive denied the accusations. In fact, it argued that the responsibility to improve the condition of farm workers, which FLOC claimed was Mt. Olive's, was the grower's and not the food processor's. It is the farmers, Mt. Olive responded, who need to deal with the labor issues FLOC was leveling against them. However, Mt. Olive argued to no avail; once again, FLOC insisted that Mt. Olive, as the most resourceful party, needed to assume more responsibility in the cucumber business of North Carolina. The growers, FLOC underscored, could not afford the situation on their own.

Although Mt. Olive claims that the boycott was fundamentally misleading and unfair, in 2003, they finally (after five years) sat at the negotiating table with both FLOC and the farmers. Two interesting realities, according to Mt. Olive's perspective, seemed to have exerted the final pressure. First of all, the need to keep damage control within reasonable levels; Bill Bryan, Mt. Olive's president, talked about how “time-consuming” and “annoying” it was to explain why his company was being boycotted. According to Mr. Bryan, the boycott caused Mt. Olive peripheral financial damage; for instance, no store in



North Carolina removed their products from the shelves, but in Ohio stores like Kroger, Wal-Mart, Meijer, and Farmer Jack did.

Secondly, the fact that Mr. Bryan is a Methodist, and that the United Methodist Church ceased to stand by Mt. Olive, and sided instead with FLOC urged Mt. Olive to negotiate. Methodists from the northern states and from the world forced the southern Methodists to do the right thing. Now, according to the Methodist Church, "We advocate for the rights of all migrants and applaud their efforts towards responsible self-organization and self-determination. We call upon governments and all employers to ensure for migratory workers the same economic, educational and social benefits enjoyed by other citizens." In this regard, Mr. Bryan is quoted as saying, once a formal agreement was reached, "I am a pickle packer who is glad to be out of a pickle today."

The coalition

For FLOC, winning this five plus-year boycott was extremely important. Not only was justice served in terms of improving working conditions for farm workers, but FLOC's identity was boosted as a result. As in the past, FLOC's boycott was supported by a host of religious, labor, student, and community organizations, demonstrating once again that FLOC's biggest asset is the people who stand by the farm workers' right to organize for collective bargaining.

Of the 300 entities that supported FLOC, these are just a few: the National Council of Churches, the United Church of Christ, the United Methodist Church, the Alliance of Baptists, the National Farm Worker Ministry, the United Students Against Sweatshops, and the AFL-CIO.

A case in point was the role played by the General Board of Church and Society of the Methodist Church, which, after seeing the way Duke University (a Methodist university) sided with Mt. Olive, after originally supporting FLOC in 2001, as a result of the demands imposed by the university's chapter of United Students Against Sweatshops, condemned Duke University because, among other things, Mt. Olive's responses to FLOC's requests provided "no protection mechanisms for workers to address issues or make a grievance in safety."

The victory: Making history, again

With this 2003 victory, FLOC created the first generation of guest-workers in the United States with union representation and a contract; a substantial accomplishment for an organization fighting globalization from its very bottom.

In general, FLOC's victory established two sets of propositions. First, it offers concrete gains for the present as well as open-ended structures for future negotiations; secondly, it sets the stage for a labor dialogue between the United States and Mexico.

With regard to the concrete gains, the agreement “raises wages for Mt. Olive workers by a total of 10% over three years.” By raising the price Mt. Olive pays its growers, guest workers in North Carolina could earn \$10 to \$12 an hour, instead of the \$8.06 an hour stipulated by federal law. In addition, Mt. Olive agreed to compensate growers who provide worker’s compensation coverage with a 3% bonus.

The agreement provides an effective grievance process for workers by establishing a neutral party to resolve disputes between the union and the farmers. It endows the union with the right to request reports on chemicals and pesticides used in the field, and it gives the workers “at least a half-day rest after working seven consecutive days.”

In terms of the open-ended structures for future negotiations, with union representation and a contract, farm workers from North Carolina can expect improvement in housing and health care, always critical in the farm worker’s predicament, for Mt. Olive agreed to participate in future forums to study ways to better serve farm workers in these areas. In addition, FLOC agreed to examine issues of fair trade relative to competing growers and industries.

As far as the ongoing labor dialogue between the United States and Mexico is concerned, FLOC is now overseeing the recruitment process of these workers in Mexico as an attempt to put an end to a number of irregularities that plague the system like graft, bribery, and blackmail. To that end, FLOC opened an office and placed representatives in Mexico.

With this victory, which Velasquez regards as the “the most progressive agricultural worker–employer accord in the nation,” FLOC underscores its labor philosophy for the twenty first century: “instead of a complain-driven system, one that is proactive about improving farm workers conditions.”

With 8,000 new members in North Carolina, FLOC has become the second largest labor union in the State.

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